

16. 9:00 AM CASE NUMBER: MSC21-01176
CASE NAME: VAUGHNS VS MUSUKULA
BE RELIEVED AS COUNSEL FOR PLTF THOMAS VAUGHNS
FILED BY: VAUGHNS, THOMAS
TENTATIVE RULING:

Ann Harding Battin (“Counsel”) filed a Motion to be Relieved as Counsel on July 9, 2026 (the “Motion to be Relieved as Counsel”). The Motion to be Relieved as Counsel was set for hearing on August 10, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Thomas Vaughns (“Plaintiff”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship, including as a result of a failure to communicate with Counsel. See Declaration filed July 9, 2026, ¶12. Plaintiff has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court will issue the proposed order after hearing submitted with the moving papers.

17. 9:00 AM CASE NUMBER: N26-0464
CASE NAME: PETITION OF:WORLDWIDE LENDERS. INC.
DEPOSIT OF SURPLUS
FILED BY:
TENTATIVE RULING:

The matter is on calendar in connection with Petitioner Worldwide Lenders, Inc.’s (“Petitioner”) Petition and Declaration regarding Unresolved Claims and Deposit of Undistributed Surplus Proceeds of Trustee’s Sale filed on March 11, 2026 (the “Petition”). The matter was set for hearing on August 10, 2026.

Background

As set forth in the Petition, the sum of \$94,533.97 remained undistributed, after deduction of fees and expenses, following a trustee’s sale held on or about September 10, 2025. That amount was ordered deposited with the Clerk of the Court (the “Deposited Funds”). See Order entered May 8, 2026 (the “Order for Deposit of Surplus Funds”).

On May 11, 2026, a Notice of Completion of Deposit and Discharge was filed with the Court which reflects the deposit of \$94,533.97 with the Court.

On May 26, 2026, claimant Asset Recovery, Inc. (“Asset Recovery”) filed a claim to the Deposited Funds, along with several supporting papers. Asset Recovery contends that the former owner of the subject property, Gregory J. Broussard (the “Former Owner”) assigned his rights to any surplus proceeds from